

Smt Shwetha T vs Sri Manjunath on 23 September, 2023

Author: S.G.Pandit

Bench: S.G.Pandit

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NC: 2023:KHC:34719
CP No. 297 of 2023

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 23RD DAY OF SEPTEMBER, 2023
BEFORE
THE HON'BLE MR JUSTICE S.G.PANDIT
CIVIL PETITION NO. 297 OF 2023

BETWEEN:

SMT. SHWETHA T.,
W/O MANJUNATH,
D/O LATE M.G.THIPPESWAMY,
AGED ABOUT 37 YEARS,
OCC - ASSISTANT TEACHER,
GOVERNMENT HIGHER PRIMARY SCHOOL,
KODIHALLI VILLAGE, DEVIPURA POST,
HOSADURGA TALUK,
CHITRADURGA DISTRICT.

R/AT C/O SOLABHESHWARA,
SJM LAYOUT, HOSADURGA TOWN,
CHITRADURGA DISTRICT.

...PETITIONER

(BY SRI.N.RAMAKRISHNA, ADVOCATE)

AND:

SRI. MANJUNATH,
S/O CHANNABASAPPA KUMBAR,

AGED ABOUT 40 YEARS,
OCC. ASSISTANT TEACHER,

R/AT CHANNABASAPPA,
NO.198, DALBANJAN BUILDING,
3RD MAIN CROSS,
RAVI NAGAR, GOKUL ROAD,
HUBBALLI - 580 030.
ALSO AT
SRI GURU SIDDARAMESHWARA
COMPOSITE PRE UNIVERSITY COLLEGE,
(HIGH SCHOOL SECTION) MALLANAPPANAHALLI,
HOSADURGA TALUK,

Digitally signed by
A K CHANDRIKA

Location: High
Court of
Karnataka

CHITRADURGA DISTRICT.

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...RESPONDENT

(BY SRI. ARJUN R KHOT, ADVOCATE)

THIS CIVIL PETITION IS FILED UNDER SEC.24 OF CPC, PRAYING TO PASS AN ORDER TO A) TRANSFER THE CASE IN M.C.NO.288/2023 ON THE FILE HONBLE PRINCIPAL FAMILY COURT, HUBBALLI TO THE FILE OF HON'BLE SENIOR CIVIL JUDGE AND JMFC, HOSADURGA. B) PASS SUCH OTHER APPROPRIATE JUDGMENT OR ORDER/S AS THIS HONBLE COURT DEEMS FIT UNDER FACTS AND CIRCUMSTANCES OF THE CASE IN THE INTEREST OF JUSTICE AND EQUITY.

THIS PETITION, COMING ON FOR ADMISSION, THIS DAY, THE COURT MADE THE FOLLOWING:

ORDER

Petitioner, wife of respondent is before this Court under Section 24 of CPC with a prayer to transfer M.C.No.288/2023 on the file of Principal Family Court at Hubballi to the Court of Senior Civil Judge & JMFC, Hosadurga.

2. Heard Sri.N.Ramakrishna, learned counsel for the petitioner and Sri. ARjun R. Khot, learned counsel for the respondent. Perused the petition papers.

3. Learned counsel for the petitioner would submit that marriage of the petitioner and respondent was solemnised on 12.05.2013 and they have no issues from NC: 2023:KHC:34719 the marriage. Both the petitioner and respondent are working as teachers at Government Higher Primary School at Hosadurga Taluk.

4. Learned counsel for the petitioner would submit that respondent initiated M.C.No.288/2023 before the Family Court at Hubballi under Section 13(1)(ia) and (ib) of Hindu Marriage Act, 1955, for decree of dissolution of marriage. Learned counsel would submit that since both the petitioner and respondent are working within Hosadurga Taluk, it would be convenient for both of them to attend if the proceedings are transferred to Hosadurga. Learned counsel would further submit that though respondent/husband is working at Hosadurga, only to harass the petitioner, initiated the proceedings at Hubballi. Therefore, he prays to allow the petition and transfer the petition to Hosadurga.

5. Learned counsel for the respondent would oppose the prayer of the petitioner and would submit that respondent/husband is residing at Hubballi along with his NC: 2023:KHC:34719 parents and

he is travelling from Hubballi to Hosadurga everyday. Further he submits that respondent has to look after his old age parents, who are at Hubballi. It is submitted that it would be difficult for the respondent to attend the proceedings at Hosadurga. Thus, he prays for dismissal of the petition.

6. Having heard the learned counsels for the parties and on perusal of petition papers, I am of the view that petition deserves to be allowed in the facts and circumstances of the case.

7. In a petition under Section 24 of CPC for transfer of proceedings, more particularly in matrimonial cases, the hardship or inconvenience that would be caused to the wife shall have to be looked into along with their social and financial status.

8. In the instant case, both the petitioner and respondent are working as Secondary School teachers in Education Department at Hosadurga Taluk. When the respondent is working within Hosadurga Taluk, he could NC: 2023:KHC:34719 not have initiated proceedings in M.C.No.288/2023 before the Family Court at Hubballi. It appears that the respondent only with a view to harass the petitioner, initiated the proceedings at Hubballi. The contention of learned counsel for the respondent that the respondent is travelling from Hubballi to Hosadurga everyday, cannot be believed. Moreover, being a Government servant and Government school teacher, he cannot be out of Headquarters and he could not travel from Hubballi to Hosadurga everyday.

9. Since both the petitioner and the respondent are working within Hosadurga Taluk as Government teachers, it would be appropriate to transfer the MC proceedings initiated by the respondent at Family Court, Hubballi to Senior Civil Judge & JMFC at Hosadurga. Hence, the following:

ORDER

(i) Petition filed under Section 24 of CPC is allowed, by directing transfer of M.C.No.288/2023 on the file of Principal NC: 2023:KHC:34719 Family Court, Hubballi to Senior Civil Judge & JMFC, Hosadurga, for disposal in accordance with law.

Sd/-

JUDGE DR